

STATE OF NEW YORK

614--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. RIVERA, BRISPORT, CLEARE, COMRIE, FAHY, FERNANDEZ, GONZALEZ, HARCKHAM, JACKSON, MYRIE, SALAZAR, SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law and the correction law, in relation to presumptive eligibility for medical assistance benefits of individuals leaving incarceration

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 364-i of the social services law is amended by adding a new subdivision 9 to read as follows:

9. (a) An individual who is incarcerated by the department of corrections and community supervision, or in a local correctional facility as defined in section two of the correction law, shall be presumed eligible for medical assistance under this title beginning on the date of their release from the incarceration, where the department of corrections and community supervision or the local correctional facility determines, on the basis of preliminary information, that the individual is eligible for coverage under paragraphs (b) or (c) of subdivision one of section three hundred sixty-six of this title.

(b) The presumptive eligibility shall continue through the earlier of: the day on which eligibility is determined under this title; or, in the case of an individual for whom an application for assistance under this title is not filed or who does not file an application for such assistance, sixty days after release of such individual from incarceration.

(c) This subdivision shall be effective only if, and as long as, federal financial participation is available for expenditures incurred under this subdivision.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD00018-05-6

1 (d) The commissioner of health shall take all steps necessary and
2 shall use best efforts to secure federal financial participation for
3 purposes of this subdivision, including the prompt submission of appro-
4 priate amendments to the state plan under title XIX of the federal
5 social security act.

6 (e) The commissioner shall also develop materials to educate individ-
7 uals leaving correctional facilities about the medical assistance
8 program, including what steps need to be taken to ensure continued
9 enrollment in the program for those deemed presumptively eligible, and
10 how to begin receiving medical services upon release from incarceration.

11 § 2. Section 71 of the correction law is amended by adding a new
12 subdivision 9 to read as follows:

13 9. (a) The commissioner shall take all steps necessary to enroll into
14 the medical assistance for needy persons program under title eleven of
15 article five of the social services law any individual committed to the
16 custody of the department, under subdivision nine of section three
17 hundred sixty-four-i of the social services law, unless the department
18 determines that such application is unnecessary because the individual
19 was enrolled in the medical assistance program at the time of their
20 incarceration and is expected to remain so at the time of release or
21 because the individual is ineligible for enrollment in such program or
22 does not wish to be enrolled. The commissioner shall ensure rein-
23 statement and active enrollment into the medical assistance program for
24 individuals who have maintained eligibility pursuant to subdivision
25 one-a of section three hundred sixty-six of the social services law.
26 Provided, however, that no such medical assistance shall be furnished
27 for any care, services, or supplies provided during such time as the
28 person is incarcerated except as authorized under subdivision one-a of
29 section three hundred sixty-six of the social services law or as author-
30 ized under any other applicable state or federal law or regulation
31 permitting the provision of such medical assistance. For individuals
32 successfully enrolled under this subdivision, any documents relating to
33 enrollment shall be kept in the individual's records until the individ-
34 ual's release from custody, at which time such documents shall be
35 provided to the individual where practicable.

36 (b) Where an individual is found ineligible for the medical assistance
37 program, the department shall make diligent efforts to determine whether
38 the individual is eligible for any other medical insurance program and,
39 if so, assist the individual in applying to the program for which they
40 are eligible if they wish to enroll in such program prior to release.

41 § 3. The correction law is amended by adding a new section 500-r to
42 read as follows:

43 § 500-r. Medicaid enrollment. 1. Where practicable, for any individual
44 incarcerated in a local correctional facility, the superintendent of
45 such facility shall take all steps necessary for enrollment into the
46 medical assistance for needy persons program under title eleven of arti-
47 cle five of the social services law, under subdivision nine of section
48 three hundred sixty-four-i of the social services law, unless the super-
49 intendent determines that such application is unnecessary because the
50 individual was enrolled in the medical assistance program at the time of
51 their incarceration and is expected to remain so at the time of release,
52 or because the individual is ineligible for enrollment in such program
53 or does not wish to be enrolled. The superintendent shall ensure rein-
54 statement and active enrollment into the medical assistance program for
55 individuals who have maintained eligibility pursuant to subdivision
56 one-a of section three hundred sixty-six of the social services law.

1 Provided, however, that no such medical assistance shall be furnished
2 for any care, services, or supplies provided during such time as the
3 person is incarcerated except as authorized under subdivision one-a of
4 section three hundred sixty-six of the social services law or as author-
5 ized under any other applicable state or federal law or regulation
6 permitting the provision of such medical assistance. For individuals
7 successfully enrolled under this subdivision, any documents relating to
8 enrollment shall be kept in the individual's records until the individ-
9 ual's release from custody, at which time such documents shall be
10 provided to the individual where practicable.

11 2. When a local correctional facility is unable to complete an appli-
12 cation for medical assistance prior to an individual's release from its
13 custody, the facility shall assist the individual in the completion of
14 any requirements necessary for a presumptive eligibility determination
15 prior to such individual's release unless the individual decides that
16 they do not wish to enroll in the program. The superintendent shall
17 assist individuals to submit any preliminary information that may be
18 necessary to meet presumptive eligibility requirements under subdivision
19 nine of section three hundred sixty-four-i of the social services law.

20 3. Where an individual is found ineligible for the medical assistance
21 program, the superintendent shall make diligent efforts to determine
22 whether the individual is eligible for any other medical insurance
23 program and, if so, assist the individual in applying to the program for
24 which they are eligible if they wish to enroll in such program prior to
25 release.

26 § 4. Paragraph (b) of subdivision 3 of section 366-a of the social
27 services law, as amended by chapter 41 of the laws of 1992, is amended
28 to read as follows:

29 (b) notify the applicant in writing of the decision, and where such
30 applicant is found eligible, provide a tamper resistant identification
31 card containing a photo image of the applicant for use in securing
32 medical assistance under this title provided, however, that an identifi-
33 cation card need not contain a photo image of a person other than an
34 adult member of an eligible household or a single-person eligible house-
35 hold. The department is not required to provide, but shall seek practi-
36 cal methods for providing, a card with such picture to a person when
37 such person is homebound or is a resident of a residential health care
38 facility, or an in-patient psychiatric facility, or is expected to
39 remain hospitalized for an extended period. Where the applicant is
40 incarcerated by the department of corrections and community supervision
41 or in a local correctional facility as defined in section two of the
42 correction law, the appropriate social services official or the depart-
43 ment of health or its agent shall provide such identification card to
44 the department of corrections and community supervision or local correc-
45 tional facility for keeping with the incarcerated individual's records
46 until such individual is released. The commissioner shall have the
47 authority to define categories of recipients who are not required to
48 have a photo identification card where such card would be limited,
49 unnecessary or impracticable.

50 § 5. Paragraphs (e) and (f) of subdivision 9 of section 500-b of the
51 correction law, as amended by chapter 574 of the laws of 1985, are
52 amended to read as follows:

53 (e) court orders which have been issued and which relate to staffing,
54 jail capacity or security requirements; [and]

55 (f) the number of any individuals in the custody of each facility (1)
56 enrolled in medical assistance or other medical insurance programs at

1 the time of their incarceration; (2) enrolled into such programs during
2 their incarceration, including whether they were enrolled through social
3 services districts or the New York State of Health benefits exchange
4 portal; and

5 (g) any other information requested by the commission and available to
6 the chief administrative officer with respect to this section.

7 § 6. Section 45 of the correction law is amended by adding a new
8 subdivision 20 to read as follows:

9 20. Make an annual report, in consultation with the commissioner of
10 health, to the governor, the temporary president of the senate and the
11 speaker of the assembly containing information obtained from local
12 correctional facilities under paragraph (f) of subdivision nine of
13 section five hundred-b of this chapter regarding enrollment in the
14 medical assistance for needy persons program or other medical insurance
15 program of applicants in the custody of local correctional facilities.
16 The first report under this subdivision will be completed by December
17 thirty-first, two thousand twenty-seven, and annually thereafter.

18 § 7. This act shall take effect on the one hundred eightieth day after
19 it shall have become a law; provided, however, that the amendments to
20 section 500-b of the correction law made by section five of this act
21 shall not affect the repeal of such section and shall be deemed repealed
22 therewith. Effective immediately, the commissioner of health, the
23 commissioner of corrections and community supervision, and the super-
24 intendents of local correctional facilities shall make regulations and
25 take other actions reasonably necessary to implement the provisions of
26 this act on its effective date.